

U.S. CITIZENSHIP AND IMMIGRATION SERVICES — REQUEST FOR EVIDENCE

Fictional sample document created for software testing. No real person, organization, or case is depicted.

U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
Northwoods Service Center
P.O. Box 82190
Ferrisberg, MN 55164-0190

Notice Type	Request for Evidence (RFE)
Notice Date	June 18, 2026
Receipt Number	NWC2690141783
Case Type	I-129, Petition for a Nonimmigrant Worker
Classification Sought	R-1, Nonimmigrant Religious Worker
Received Date	February 2, 2026
Petitioner	Harrowgate Covenant Assembly, Inc., 4180 Wetherby Road, Kelso Springs, OH 44087
Beneficiary	EZEObI, Tobenna Chukwudi (DOB 05/14/1993, Nigeria)
Proffered Position	Minister of Liturgical Music and Catechesis
Page	1 of 4

RESPONSE DUE DATE: SEPTEMBER 14, 2026

PRIYA S. CHANDRASEKAR, ESQ.
CHANDRASEKAR IMMIGRATION LAW PLLC
1907 Ordway Street, Suite 410
Kelso Springs, OH 44088

NOTICE OF INTENT AND EFFECT OF THIS REQUEST

USCIS has reviewed the Form I-129 petition and supporting documentation identified above. The evidence submitted is not sufficient to establish eligibility for the classification sought. Before a decision can be made, you must submit the additional evidence described in this notice.

You must submit all requested evidence at one time. Submitting only part of the requested evidence will be treated as a request for a decision on the record. USCIS will not issue a second request for the same evidence. If you do not respond by the response due date shown above, the petition will be denied under 8 CFR 103.2(b)(13).

You may respond in one of the following ways:

- Submit all requested evidence. Place the original of this notice on top of your response.
- Submit partial evidence with a written statement that you have no further evidence to submit.
- Withdraw the petition in a signed written statement.

All foreign-language documents must be accompanied by a full English translation and the translator's certification of competence, as required by 8 CFR 103.2(b)(3). Photocopies are acceptable unless originals are specifically requested.

SUMMARY OF THE RECORD

The petitioner is a religious congregation that states it is affiliated with the Fourth Covenant Fellowship of North America. The petitioner seeks to classify the beneficiary as a nonimmigrant religious worker in a religious occupation (not as a minister) to serve full time, 35 hours per week, at a stated annual salary of \$38,000 plus a housing allowance.

The following items were received with the petition and have been reviewed:

1. Employer support letter signed by Rev. Dr. Cordelia N. Ashgrove, dated January 22, 2026;
2. Tax-exemption and denominational structure evidence summary;
3. Compensation evidence summary, with board resolution and payroll extracts;
4. Beneficiary's membership and religious training record;
5. Proposed weekly work schedule and duty-hour allocation;
6. FY2026 operating budget summary and treasurer's statement.

EVIDENCE REQUESTED

Requests are numbered 1 through 8. Respond to each numbered request separately and label each item of evidence with the corresponding request number.

REQUEST 1 — PETITIONER'S STATUS AS A BONA FIDE NON-PROFIT RELIGIOUS ORGANIZATION

Regulatory basis: 8 CFR 214.2(r)(3), 214.2(r)(9)

What the record contains: A summary describing an IRS determination and a group exemption ruling covering the petitioning congregation.

What you must submit:

- a. A currently valid determination letter from the Internal Revenue Service establishing that the organization is a tax-exempt organization; or
- b. If the organization is recognized under a group tax exemption, a currently valid determination letter from the IRS establishing that the group is tax exempt, together with documentation showing the petitioner's inclusion in the group ruling for the period covering the filing date; and
- c. Organizing documents (articles of incorporation, constitution, or bylaws) describing the organization's religious purpose and its form of ecclesiastical government.

REQUEST 2 — BENEFICIARY'S MEMBERSHIP IN THE RELIGIOUS DENOMINATION

Regulatory basis: 8 CFR 214.2(r)(1), 214.2(r)(10)

What the record contains: Assertions regarding the beneficiary's affiliation with the denomination.

What you must submit: Evidence establishing that the beneficiary has been a member of a religious denomination having a bona fide non-profit religious organization in the United States for at least the two years immediately preceding the filing date of the petition (February 2, 2024 through February 2, 2026). Acceptable evidence includes membership certificates or registers, transfer-of-membership records, and dated correspondence from the congregation or denominational body identifying the periods of membership.

REQUEST 3 — QUALIFYING RELIGIOUS OCCUPATION AND THE DUTIES TO BE PERFORMED

Regulatory basis: 8 CFR 214.2(r)(3) (definition of "religious occupation"), 214.2(r)(8)

The record describes the proffered position as "Minister of Liturgical Music and Catechesis" but the petition seeks classification in a religious occupation rather than as a minister. To qualify as a religious occupation, the duties must primarily relate to a traditional religious function, must be recognized as a religious occupation within the denomination, must primarily relate to and clearly involve inculcating or carrying out the religious creed and beliefs of the denomination, and must not be primarily administrative or support work.

What you must submit:

- a. A detailed description of the proposed duties, stating the percentage of total working time devoted to each duty;
- b. An explanation, supported by the duty schedule submitted, of each scheduled activity that appears administrative, clerical, custodial, or otherwise secular in nature, including office administration, bookkeeping support, vendor invoicing, facility booking, supply ordering, building-maintenance scheduling, equipment setup, and cleaning;
- c. Documentation from the denomination — such as a denominational handbook, position standard, or governing-body statement — establishing that the proffered position is recognized as a religious occupation within the Fourth Covenant Fellowship of North America, rather than a position created by the local congregation alone;
- d. A statement identifying who will supervise the beneficiary and the position's place in the organizational structure.

REQUEST 4 — COMPENSATION TO BE PAID TO THE BENEFICIARY

Regulatory basis: 8 CFR 214.2(r)(11)

What you must submit — verifiable evidence of how the petitioner intends to compensate the

beneficiary, including:

- a. Past evidence of compensation for similar positions within the organization (payroll records, IRS Form W-2 or Form 1099 documentation, or certified tax returns);
- b. A board resolution, employment agreement, or comparable corporate record authorizing the offered salary and any housing or other allowance;
- c. Documentation showing the amount budgeted or set aside for the beneficiary's compensation.

REQUEST 5 — BENEFICIARY'S QUALIFICATIONS FOR THE PROFFERED POSITION

Regulatory basis: 8 CFR 214.2(r)(3), 214.2(r)(10)

What you must submit: Evidence establishing that the beneficiary is qualified to perform the duties of the proffered position under the denomination's own requirements, including:

- a. Evidence of the denomination's requirements for the position (education, training, credentialing, or commissioning);
- b. Transcripts, diplomas, certificates, or credentialing records showing the beneficiary satisfies those requirements;
- c. A letter of endorsement or good standing from the denominational governing body.

REQUEST 6 — PETITIONER'S FINANCIAL ABILITY TO COMPENSATE THE BENEFICIARY

Regulatory basis: 8 CFR 214.2(r)(11), 103.2(b)(1)

The record contains a summary of the organization's operating budget prepared internally. This alone does not establish that funds are available.

What you must submit:

- a. The petitioner's audited or independently reviewed financial statements for the most recently completed fiscal year; or, if no audit or independent review is performed,
- b. Bank statements for the organization's operating account covering the twelve (12) months immediately preceding the filing date (February 2025 through February 2026), showing the account holder's name and the ending balances; and
- c. The petitioner's IRS annual return or, if the organization is not required to file one, a signed statement citing the basis for the exemption from filing.

REQUEST 7 — EVIDENCE OF THE PHYSICAL PREMISES WHERE THE BENEFICIARY WILL WORK

Regulatory basis: 8 CFR 214.2(r)(3), 214.2(r)(16); 214.2(r)(8)(iv)

The petition identifies a work location but the record contains no evidence that the petitioner occupies or controls those premises. Note that USCIS may verify the supporting evidence through an on-site inspection.

What you must submit:

- a. A copy of the deed, lease, or rental agreement for 4180 Wetherby Road, Kelso Springs, OH 44087, or a current property-tax record in the petitioner's name;
- b. Photographs of the exterior of the premises showing any signage identifying the organization, and of the interior worship space and the specific area where the beneficiary will work;
- c. A floor plan or diagram of the premises identifying the beneficiary's work location;
- d. If the petitioner shares the premises with another organization, a copy of the shared-use or sublease agreement and a statement of the hours allocated to the petitioner.

REQUEST 8 — BENEFICIARY'S PRIOR PERIODS OF STAY IN R-1 STATUS AND PRIOR IMMIGRATION HISTORY

Regulatory basis: 8 CFR 214.2(r)(4), 214.2(r)(5), 214.2(r)(6)

An alien may not be granted R-1 status for a cumulative period exceeding five years, and time previously spent in R-1 status counts toward that limit unless the alien resided and was physically present outside the United States for the immediately preceding year.

What you must submit:

- a. A signed statement listing every prior period the beneficiary spent in the United States in any status, with the dates of each entry and departure and the status held;
- b. Copies of all prior Forms I-797 approval notices issued for the beneficiary, all Form I-94 arrival/departure records, and the biographic and visa pages and all admission stamps of the beneficiary's passport;
- c. If the beneficiary previously held R-1 status, evidence establishing the total time accrued and, if applicable, evidence of physical presence outside the United States for the year immediately preceding this petition (such as employment records, residence records, or tax records from abroad);
- d. If the beneficiary has never been present in the United States, a signed statement to that effect, supported by the passport pages described in item (b).

HOW TO RESPOND

Mail your complete response, with this notice on top, to:

USCIS Northwoods Service Center
Attn: I-129 RFE Unit — Box 82190
Ferrisberg, MN 55164-0190

Do not send original documents unless specifically requested. Keep a copy of everything you submit for your records. If you have questions, call the USCIS Contact Center and refer to receipt number NWC2690141783.

Sincerely,

Director, Northwoods Service Center

U.S. Citizenship and Immigration Services

Page 4 of 4 — Receipt Number NWC2690141783